

HB 1730 -- FIREARM SUPPRESSORS

SPONSOR: Costlow

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on General Laws by a vote of 10 to 3. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 3.

Currently, a person commits a criminal offense if he or she knowingly possesses, manufactures, transports, repairs, or sells a firearm silencer in violation of Federal law.

This bill adds the phrase "firearm suppressor" to the existing definition of "firearm silencer" and adds new definitions for "generic and insignificant part" and "manufacture".

Beginning August 28, 2026, the possession, manufacture, transportation, repair, or sale of a firearm suppressor will no longer be a criminal offense. If a criminal action for this offense is still pending on August 28, 2026, the action must be dismissed on that date. Final convictions for this offense that existed prior to August 28, 2026, will not be affected.

Beginning August 28, 2026, a firearm suppressor that is manufactured in Missouri and remains in Missouri will not be subject to Federal law or regulation, including registration, under the U.S. Congress's authority to regulate interstate commerce. A firearm suppressor must be deemed to have been manufactured in Missouri if the item is:

- (1) Made from basic materials; and
- (2) Does not include parts imported from another state, other than generic and insignificant parts.

A firearm suppressor manufactured in Missouri that is subsequently attached to a firearm that was imported from another state will still be considered to have been manufactured in Missouri.

Basic materials, such as unmachined steel, used in the manufacturing process of firearm suppressors will not be deemed to be a firearm suppressor, and will not be subject to Federal regulation under the U.S. Congress's authority to regulate interstate commerce, as if it actually were a firearm suppressor. A firearm suppressor manufactured and sold in Missouri must have the words "Made in Missouri" clearly stamped on it.

If a U.S. citizen residing in Missouri makes a written notification to the Attorney General of his or her intent to manufacture a firearm suppressor, the Attorney General will seek a declaratory judgment from a Federal district court in this State that the manufacturing process described in this bill is consistent with the U.S. Constitution.

This bill prohibits any State or local government entity, as specified in the bill, from adopting a rule, order, ordinance, or policy under which a State or local government entity attempts to enforce a Federal statute, order, rule, or regulation that regulates a firearm suppressor if the statute, order, rule, or regulation seeks to impose a prohibition, restriction, or other regulation that does not exist under the laws of this State, nor will any State or local government entity enforce, or attempt to enforce, any Federal statute, order, rule, or regulation that seeks to regulate firearm suppressors.

If any State or local government entity adopts a rule, order, ordinance, or policy that seeks to enforce a Federal law related to firearm suppressors, or allows the enforcement of such a Federal law, such entity will not receive State grant funds.

Any citizen residing in the jurisdiction of an entity described in this bill can file a complaint with the Attorney General if the citizen offers evidence that the entity has adopted a rule, order, ordinance, or policy under which the entity enforces a Federal law as described above. The citizen must include in the complaint any evidence that the citizen has in support of his or her contention.

If the Attorney General determines that a complaint filed against an entity is valid, the Attorney General can compel the entity's compliance with the law by filing a Writ of Mandamus or other equitable relief in an appropriate court of law.

This bill is similar to HBs 548 & 898 (2025).

PROPONENTS: Supporters say that this bill separates firearm suppressors made in Missouri versus elsewhere and that suppressors made in the state and that stay in the state should be immune from the commerce clause and should be regulated by the state. Federal law requires additional steps and waiting periods, and these steps are unnecessary since suppressors do not make firearms more lethal they simply lower the decibels. Supporters further say that this is not about interstate

commerce, but about health and saving people's hearing. Supporters believe that there are few concerns about the federal government withholding money from the state for passing this type of legislation.

Testifying in person for the bill were Representative Costlow; Arnie Dienoff.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.